

		(Reply at 3:25-4:1.) Stay of Proceedings Fidelity’s motion to stay the action as to Fidelity pending completion of the arbitration proceedings is granted. (See 9 U.S.C. § 3 [if a court determines that a suit or proceeding may be referred to arbitration under the FAA, it “shall” issue a stay pending the completion of arbitration upon a motion from either party].) Unlike Code of Civil Procedure section 1281.2(c), the FAA does not grant courts the discretion to stay proceedings where some parties to the action are not parties to the arbitration agreement or when proceedings in different forums could result in conflicting rulings on common issues of law or fact. (<i>Valencia v. Smyth</i> (2010) 185 Cal.App.4th 153, 157, citing 9 U.S.C. §§ 3, 4.) Defendant Fidelity Brokerage Services, LLC to give notice.
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